Responsible Administrator: Provost
Responsible Office: Provost
Effective Date: 04/10/2026
Approved by: Academic Affairs Council
Date of Revision: 04/10/2026

Misconduct in Research

Policy Statement

The University has a commitment to high ethical standards in research; therefore, it provides this policy and procedure for an administrative process to review reports of alleged misconduct in research conducted at the University.

Purpose of Policy

Federal law mandates that federal agencies sponsoring research must require an awardee institution to have such a policy in place. Under statutory authority 42 U.S.C. 289b, Section 493 of the Public Health Service Act provides that the Secretary of the Department of Health and Human Services require that entities receiving federal funds for the conduct of research, research training and related research activities submit assurances that these entities have established, based on regulations prescribed by the Secretary, an administrative process to review reports of alleged misconduct in research, research training and related research activities, and a mechanism for reporting any investigation of alleged scientific misconduct to the Secretary. Additionally, this policy is in accordance with the National Institutes of Health, 42 CFR Part 93 (2024), and the National Science Foundation, 45 CFR Part 689, as applicable.

The primary responsibility for detecting, investigating, reporting and resolving allegations of alleged misconduct rests with the University, and it must promptly initiate an inquiry into any suspected or alleged misconduct brought to its attention, either by a third party or on its own motion, and conduct an investigation, if warranted, taking whatever action necessary to ensure the integrity of research, the rights and interests of research subjects and the public, and the observance of legal requirements of the funding. The Dean will coordinate the investigation of alleged misconduct.

Applicability

This policy applies to all staff and academic appointees.

Policy Procedure

Definitions

"Complainant" refers to the individual(s) alleging that an act of misconduct has occurred. In some cases a complainant person is unnecessary where the issue of misconduct is to be determined by a review of documents or other materials.

"Dean" refers to respondent's Dean or the Director of the respondent's support unit in the case of staff.

"Inquiry" means information-gathering and initial fact-finding to determine whether an allegation of misconduct warrants an investigation.

"Inquiry Committee" means a committee of six (6) faculty members experienced in research and representing a cross section of the academic disciplines. The Committee is appointed by the Provost based upon the recommendations of the Deans. In the event a staff member is the respondent, at least two staff members will be included as part of the six members.

"Investigation" means the formal examination and in-depth evaluation of all relevant facts to determine if misconduct has occurred.

"Investigative Committee" means a committee of five (5) faculty members, three (3) of whom will be senior, tenured faculty members having expertise in the areas in question, which are to be appointed by the Provost based upon the recommendation of the Deans, and two (2) faculty members named by the respondent who agree to serve. An attorney may be named to serve in an advisory capacity and a recording secretary will be designated to record the proceedings of the meetings. The respondent may have his/her attorney present for advising purposes only. However, the attorney is not provided an opportunity to address the Investigative Committee directly. In the event a staff member is the respondent, the Provost will appoint at least one senior staff member as part of their three appointees and the respondent may choose up to one staff member as part of their two appointees.

"ORI" means the Office of Research Integrity, the U.S. Department of Health and Human Services office responsible for oversight of institutions receiving PHS funding for research.

"Research Misconduct" means fabrication, falsification, or plagiarism in proposing, performing, or reviewing research, or in reporting research results. (a) Fabrication is making up data or results and recording or reporting them. (b) Falsification is manipulating research materials, equipment, or processes, or changing or omitting data or results such that the research is not accurately represented in the research record. (c) Plagiarism is the appropriation of another person's ideas, processes, results, or words without giving appropriate credit. Research misconduct does not include honest error or differences of opinion. (42 CFR §93.103) **[AMENDED: §93.103]**

"Respondent" refers to the individual(s) against whom an allegation of misconduct has been made.

Six-Year Limitation on Allegations (§93.104)

The University will not pursue allegations of research misconduct if the alleged misconduct occurred more than six (6) years before the date the allegation was received by the institution or ORI, unless one of the following exceptions applies: (a) The alleged misconduct was the subject of a legitimate institutional investigation or ORI inquiry within six years of the original conduct, or within six years after reuse or republication of the allegedly fabricated, falsified, or plagiarized material; (b) There is evidence of subsequent use of the false or fabricated data or plagiarized content; or (c) The respondent has left the institution and cannot be held accountable through normal institutional channels.

Evidentiary Standards (§93.105)

In all research misconduct proceedings, the following evidentiary standards apply:

1. **Burden of Proof:** The institution bears the burden of proof to establish by a preponderance of the evidence that research misconduct has occurred.
2. **Preponderance of Evidence:** A finding of research misconduct requires that the evidence demonstrate it is more likely than not that research misconduct occurred.
3. **Respondent's Burden:** Once the institution establishes a prima facie case, the respondent bears the burden of proof for any affirmative defenses, mitigating factors, or exculpatory evidence.

Confidentiality (§93.106)

To the extent permitted by law, the University will maintain the confidentiality of the identities of respondents, complainants, and witnesses during all stages of the research misconduct proceeding. Confidential information may be disclosed: (a) to ORI as required; (b) to institutional officials with a need to know; (c) as required by law; or (d) as necessary to conduct a thorough, competent, objective, and fair proceeding. The University will inform all participants of the confidentiality requirements and the potential consequences of breaching confidentiality.

Mechanisms for Inquiry into Alleged Misconduct in Research
Initial written reports of alleged misconduct are to be brought to the attention of the supervisor of the individual(s), i.e., respondent(s) whose actions are in question. If the individual making the informal allegation chooses not to make a formal allegation, but the Department Head or Dean believes there is sufficient cause to warrant an inquiry, the matter will be pursued; in such a case, there is no complainant.

At the University this initial report is made to the department head who must refer the matter in writing to the Dean within seven (7) working days of receipt thereof, with or without comments. The respondent will be notified and given an opportunity to provide a written response. Only in very unusual circumstances, the complainant making the original allegations may report the incident directly to the Dean.

The Dean will review the materials. If after this review the Dean believes the incident warrants an inquiry, the incident will be referred to the Inquiry Committee within thirty (30) calendar days. Within ten (10) working days of the receipt of a report of alleged misconduct, the Inquiry Committee, shall convene and commence its inquiry. As soon as feasible, but not more than 45 calendar days after its appointment, the Inquiry Committee will review the available information, including information received from the respondent(s), make a written report, and recommend to the Dean whether or not an investigation should be conducted. A copy of the written report will be made available to the respondent(s). The Inquiry Committee shall reach its determination on a case-by-case basis, considering all relevant factors, including, but not limited to:

1. the accuracy and reliability of the source of the allegation of the misconduct;
2. the seriousness of the alleged misconduct;
3. the scope of the alleged incident and the context in which it becomes known; and
4. other information obtained during the inquiry.

Respondent Notification (§93.307(c)): Before the inquiry commences, the respondent must be notified in writing of the allegation(s) and the initiation of the inquiry. The respondent must be given an opportunity to comment on the inquiry report and those comments must be considered and included or referenced in the final report (§93.307(g)(3)).

The Dean will recommend to the Provost whether to terminate the inquiry or proceed with a formal investigation based on the report of the Inquiry Committee. If it is determined by the Dean that there is not sufficient basis for pursuing the allegations, this conclusion will be reported to the Provost with a recommendation that the matter be considered closed. If the Dean deems a more thorough investigation is warranted, the recommendation to the Provost will be to form an Investigative Committee. If the evidence reveals possible criminal violations, the recommendation to the Provost will be to have the file turned over to the appropriate legal authority for review. The Provost will consult the President in such matters.

The findings of and recommendations from the Inquiry Committee, and the recommendations of the Dean, and the Provost's response to the recommendations will be documented in a written report. The Dean will be responsible for maintaining an appropriately constituted file for each inquiry. Inquiry results and the Provost's decision will be made available to the respondent, to the complainant, and the Inquiry Committee. If an investigation is recommended by the Inquiry Committee, within ten (10) working days of the receipt of its findings and recommendations, the Dean, in consultation with the Provost, shall appoint an Investigative Committee, which shall convene and commence its investigation as soon as feasible, and report within 120 calendar days of its appointment its findings and recommendations to the respondent(s) and the Dean, who will promptly forward to the Provost. All materials gathered by the Inquiry Committee, as well as its findings and recommendations, will be made available immediately to the Investigative Committee if it is convened.

Since reporting requirements of sponsoring agencies vary widely, the Dean will notify the agency sponsoring the activities of the individuals if findings from the inquiry process indicate an investigation is to be undertaken in accordance with the regulations of the sponsoring agency.

ORI Notification (§93.309; §93.317): Upon the Provost's decision to initiate a formal investigation, the Dean must notify ORI in writing within thirty (30) calendar days of that decision. This notification must include: (a) the name of the respondent; (b) a description of the allegation(s); (c) the PHS support involved; and (d) a copy of the inquiry report. The Dean must also notify ORI of the final outcome of the investigation and any institutional actions taken.

Sequestration of Research Records (§93.305; §93.318)

1. **Sequestration:** Upon the initiation of an inquiry, the Dean or designated Research Integrity Officer must promptly take all reasonable and practical steps to obtain custody of all research records and evidence needed to conduct the inquiry and investigation. Sequestration must occur before or at the time the respondent is notified of the allegation to prevent the destruction, removal, alteration, or falsification of relevant records.
2. **Inventory:** The University will inventory all sequestered records contemporaneously with sequestration and provide the respondent with a copy of the inventory.
3. **Maintenance and Access:** Sequestered records must be maintained in a secure manner throughout the proceeding. The respondent must be given reasonable supervised access to the sequestered research records as needed to mount a defense. Original records must be retained and any records provided to the respondent must be copies.
4. **Retention:** The University must retain all records related to the research misconduct proceeding for a minimum of seven (7) years after the completion of the proceeding or the completion of any ORI review, whichever is later (§93.318).

Mechanism for Investigation into Alleged Misconduct in Research

If the Provost deems a more thorough investigation is warranted, the Dean will notify the respondent of the right to choose two (2) committee members. The Dean will then recommend three (3) additional faculty members to serve on the Investigative Committee, which shall convene immediately to conduct a prompt and thorough investigation of the alleged misconduct. In undertaking this investigation, the Committee will act promptly, ensure fairness to all, secure necessary and appropriate expertise to carry out a thorough and authoritative evaluation of the relevant evidence, and take precautions against real or apparent conflicts of interest. An investigation may consist of a combination of activities including but not limited to:

1. review of readily available documents;
2. review and copying of data or other pertinent documents of the University or elsewhere;
3. review of the administrative procedures and/or methods at the University, including whatever investigative process has been involved;
4. inspection of laboratory or clinical facilities and/or material at the University;
5. interview parties and witnesses who may have been involved in or have knowledge about the case;
6. review of relevant publications;
7. invite outside consultants to participate in an investigation, either as site visitors to the University or in some other capacity;
8. review of any documents or evidence provided by or properly obtainable from parties, witnesses or other sources;
9. cooperation with other agencies;
10. opportunity for the subject of the investigation to be heard; and
11. full adjudicatory hearings or other formal proceedings as warranted.

Pursuing Leads (§93.310(j)): The Investigative Committee must pursue all leads reasonably related to the allegations, including any that are exculpatory for the respondent, even if such leads are outside the original scope of the inquiry or investigation. No lead may be disregarded solely because it was not raised in the initial allegation.

Within 120 calendar days of its appointment, the Investigative Committee will formulate a written report of its findings and conclusions regarding the validity of the accusations and immediately forward it to the Dean. The Investigative Committee may make recommendations regarding administrative action to be taken.

Respondent's Right to Comment (§93.312; §93.313(j)): The respondent must be provided a copy of the draft investigation report and given at least thirty (30) days to submit written comments. The Investigative Committee must consider and address those comments in its final report, including by attaching the comments as an appendix or by specifically addressing them in the body of the report.

The Dean, based on the content and recommendations and any other information contained in the report of the Investigative Committee, will make a recommendation to the Provost for action within thirty (30) calendar days after receiving the report. The Dean may recommend to the Provost interim administrative actions as appropriate. The Dean will keep the applicable sponsoring agency apprised of any developments during the course of the investigation as required by the regulations of the sponsoring agency.

Actions to be Followed Subsequent to an Investigation
If the alleged misconduct is substantiated by a thorough investigation, the following actions, if appropriate, will be completed in a timely manner:

1. appropriate sponsoring agencies will be notified of the findings of the investigation
2. all pending abstracts and papers emanating from fraudulent research will be withdrawn or corrected; editors of journals in which previous abstracts and papers appeared will be notified;
3. other institutions and sponsoring agencies with which the individual has been affiliated will be notified if there is reason to believe that the validity of previous research might be questionable; and
4. appropriate action will be taken to terminate or alter the status of faculty members(s) whose misconduct is substantiated. The disciplinary action of respondent(s) may consist of, but is not limited to, one or more of the following:
    a. Letter of reprimand
    b. Removal from particular project
    c. Special monitoring of future work
    d. Probation
    e. Suspension
    f. Salary reduction
    g. Rank reduction
    h. Termination of employment

Protection of Rights
From the onset, to the extent allowable by law, the University will protect the rights and reputations of all parties, including the individuals who report the perceived misconduct in good faith, the respondent(s), and the members of the Inquiry and Investigative Committees.

The Dean will afford the respondent(s) confidential treatment to the extent allowable by law, a prompt and thorough inquiry and/or investigation, an opportunity to provide evidence and/or documentation relative to the allegations, and an opportunity to comment on allegations and findings of the Inquiry Committee and its recommendation and the findings of the Investigative Committee and its recommendation.

If the alleged misconduct is not substantiated by a thorough investigation, formal efforts will be undertaken to restore fully the reputation of the respondent(s) under investigation. In addition, appropriate disciplinary action may be taken against any complainants whose involvement in leveling unfounded charges was demonstrated to have been malicious or intentionally dishonest.

Subsequent to the completion of an investigation, faculty practices and institutional policies and procedures for promoting the ethical conduct of research and investigation allegations of misconduct will be scrutinized and modified in the light of experience gained.

Recapitulation of Time Considerations

1. Within seven (7) working days of the receipt of a written report of alleged misconduct, the department head must refer the matter in writing, with or without comment, to the Dean; the respondent(s) will be notified.
2. Within thirty (30) calendar days of receipt of the initial report, the Dean will refer the incident to the Inquiry Committee.
3. Within ten (10) working days of receipt of a written notice of alleged misconduct, the Inquiry Committee shall convene and commence its inquiry as soon as feasible and report within forty-five (45) calendar days of its appointment its findings to the Dean, who shall promptly forward the report together, with his/her recommendations to the Provost.
4. If an investigation is recommended by the Inquiry Committee, within ten (10) working days of receipt of the written findings and recommendations, the Dean shall appoint the Investigative Committee (in consultation with the Provost), which shall convene and commence its investigation as soon as feasible and report within one hundred twenty (120) calendar days of its appointment its findings and recommendations to the Dean. The Dean shall promptly forward the report together with his/her recommendations to the Provost.
5. If an investigation is recommended by the Inquiry Committee, the Dean shall notify the sponsoring agency in accordance with the regulations of the agency.
6. If an investigation is found unwarranted by the Inquiry Committee and the Inquiry Committee reports that no further action should be taken, the Dean shall **promptly** forward the report together with his/her recommendations to the Provost. The Dean should follow this same procedure if the recommendation of the Investigative Committee should be that no further action be taken.
7. Within ten (10) working days of receipt of any written report of the Inquiry Committee and the recommendation of the Dean, the Provost shall issue a written disposition of the matter and notify in writing the respondent(s) of the decision. At this time, the Dean will notify the respondent(s) of the right to choose two (2) committee members if an investigation is necessary.
8. Within thirty (30) calendar days of the Provost's decision to initiate an investigation, the Dean must notify ORI in writing as required by §93.309.

[End of Policy]